

SOFTWARE SERVICES AGREEMENT

Between: Acme Technologies Inc. and Globex Solutions Ltd.

Date: March 15, 2024

Clause 1 — Engagement

Acme Technologies Inc. agrees to provide software development and consulting services to Globex Solutions Ltd. as described in the attached Statement of Work. Services shall commence on April 1, 2024 and continue for an initial term of twelve (12) months unless earlier terminated in accordance with this Agreement.

Clause 2 — Payment

Globex Solutions Ltd. shall pay all invoices within thirty (30) days of the invoice date. Late payments shall accrue interest at 1.5% per month on the outstanding balance. Any invoice dispute must be raised in writing within ten (10) days of receipt of the invoice.

Clause 3 — Termination Without Notice

Either party may terminate this Agreement immediately and without prior notice at any time for any reason by sending written communication to the other party. No notice period shall be required and no compensation shall be owed for early termination.

Clause 4 — Confidentiality

Each party agrees to protect the other party's confidential information with the same degree of care used for its own confidential information, but no less than reasonable care. Confidential information shall not be disclosed to any third party without prior written consent. These obligations shall expire

one (1) year after termination of this Agreement.

Clause 5 — Liability

In no event shall either party be liable for indirect, incidental, or consequential damages including loss of profits or business interruption.

The total liability of Acme Technologies Inc. under this Agreement shall be unlimited and shall not be subject to any cap or ceiling regardless of the nature of the claim.

Clause 6 — Indemnification

Globex Solutions Ltd. shall indemnify, defend, and hold harmless Acme Technologies Inc. from and against any and all third-party claims, damages, and expenses arising out of or related to this Agreement, regardless of whether such claims arise from Acme's own negligence or misconduct.

Clause 7 — Intellectual Property

All intellectual property developed by Acme Technologies Inc. during the term of this Agreement, whether or not developed specifically for Globex, shall remain the sole and exclusive property of Acme Technologies Inc. Globex shall receive no ownership rights in any developed work.

Clause 8 — Dispute Resolution

Any disputes arising under this Agreement shall be resolved exclusively through litigation in the courts of New York. The parties waive the right to jury trial. Neither party shall be required to attempt mediation or any other form of alternative dispute resolution prior to filing suit.

Clause 9 — Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, United States, without regard to its conflict of law provisions.

Clause 10 — Entire Agreement

This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior discussions, negotiations, and agreements. Any amendments must be made in writing and signed by both parties.